



Delaware County Commissioners Meeting December 18th 2023

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=iZT5EY9whb8
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Delaware County Board of Commissioners Meeting Summary

Meeting Date: Monday, December 18, 2023

Convened: 9:01 AM

1. Pre-Meeting Hearings & Committee Work Sessions

- **Session Type & Topic:** Statutory Public Hearing 00:04:59 <U+2013> Consideration of transferring county-owned property (approximately 4+ acres located at the southwest corner of Cornbread Road and Tillerson Road near the Justice Center) to the nonprofit organization Isaiah 117 House.
- **Summary of Discussion:** Hannah Kaufman, expansion coordinator for Isaiah 117 House, presented updates regarding community support and the mission of the organization, which provides safe, supportive environments for children awaiting foster care placement to prevent traumatic police station or truck stop handoffs. County Attorney John provided procedural details confirming the nonprofit met all application requirements. No members of the public spoke against the transfer during the hearing. A motion to close the public

hearing was moved, seconded, and approved by roll call vote. *(Note: Formal resolution and deed transfer addressed later in the agenda).*

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer opened the Delaware County Commissioner meeting on Monday, December 18, 2023, at 9:01 AM.
 - **Attendance:**
 - **Present:** Mr. Henry, Mr. King, Mr. Reagan, and Mr. Brook.
 - **Absent:** None noted.
 - **Presiding Officer:** Opening remarks and meeting flow led by the board president, with commissioners participating.
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3. Preliminary & Procedural Business

- **Ceremonial Openings:** Opened with the Pledge of Allegiance 00:04:21.
 - **Approval of Minutes:** Motion to table the minutes from the December 4, 2023 commissioner meeting for further review was moved, seconded, and approved by roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes) 00:09:23.
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4. Substantive Business & Board Action

- **00:07:47 Commissioner Leadership Appointments for 2024**
 - **Sponsor / Presenter:** Board Commissioners / Presiding Officer.
 - **Deliberation Summary:** Nominations were opened for board leadership starting January 2, 2024. Commissioner King was nominated and approved as President; Commissioner Sherry Reagan was nominated and approved as Vice President.
 - **Action & Vote Disposition:** Nominations closed and approved by unanimous roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes).
- **00:09:43 Purdue Extension Annual Report & Contractual Services Agreement**
 - **Sponsor / Presenter:** Justin Curley (County Extension Director / AG Educator) and Amanda (Health and Human Sciences Educator).
 - **Deliberation Summary:** Presented departmental updates, including the upcoming annual meeting on February 20 at First Church of the Nazarene, Master Gardener basic training starting in January, grant-funded safe sleep training, safe-at-home child safety classes, and the "Matter of Balance" senior fall-prevention program in partnership with LifeStream and the YMCA. Discussed the 4% increase in the Purdue contractual service agreement, which was previously reviewed and approved through the County Council budget process.

- **Action & Vote Disposition:** Contractual service agreement approved by roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes) 00:17:09.
- 00:17:29 **Food Safety Inspector Contract**
 - **Sponsor / Presenter:** Jamie Ban (Health Department Administrator).
 - **Deliberation Summary:** Presented a contract renewal for a part-time food inspector (a full-time employee of the Madison County Health Department) to conduct evening and weekend food establishment inspections, proving more cost-effective than adding a full-time staff position. Brief discussion ensued regarding enforcing the county ordinance requiring food establishments to post their most recent inspection reports visibly.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes) 00:19:46.
- 00:19:59 **Local Roads and Bridges <U+2013> Community Crossings Matching Grant**
 - **Sponsor / Presenter:** Angie (Highway Department).
 - **Deliberation Summary:** Announced that the county was awarded \$332,542.42 through Community Crossings for paving County Road 350 North (between State Road 67 and 400 East). The highway department plans to advertise bidding to extend paving further to 500 East.
 - **Action & Vote Disposition:** Agreement approved by roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes) 00:20:20.
- 00:21:54 **Catalyst Consultant Legislative Agreement**
 - **Sponsor / Presenter:** John (County Attorney).
 - **Deliberation Summary:** Renewal of an agreement with Catalyst Consultants in Indianapolis to assist the county with state legislative matters, opioid settlement distribution advocacy, and state grant funding for the mental health facility construction project.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes) 00:22:46.
- 00:22:56 **2024 Legal Services Agreement**
 - **Sponsor / Presenter:** John (County Attorney).
 - **Deliberation Summary:** Annual renewal of legal services for county litigation, project drafting, ordinances, resolutions, and upcoming mental health facility development plans.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes) 00:23:36.
- 00:23:53 **Human Resources <U+2013> Stop-Loss Insurance Agreement**
 - **Sponsor / Presenter:** Pam Mamon (Human Resources Director).
 - **Deliberation Summary:** Annual renewal of stop-loss health insurance reinsurance coverage (with a \$200,000 specific deductible) to manage self-insured county health care costs. First-month estimated premium noted at \$35,722.32.

- **Action & Vote Disposition:** Approved by roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes) [00:24:46](#).
- **00:24:57 Prescription Drug (Rx) Agreement**
 - **Sponsor / Presenter:** Pam Mamon (Human Resources Director).
 - **Deliberation Summary:** Annual renewal of employee prescription drug benefit administration contracts.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes) [00:25:24](#).
- **00:25:38 Resolution 2023-29: Park One Economic Development Area Expansion & TIF Allocation Area (SRM Concrete)**
 - **Sponsor / Presenter:** Brad Bookout (Delaware County Redevelopment Commission).
 - **Deliberation Summary:** Resolution to incorporate the new SRM Concrete facility adjacent to the rail spur into the Park One Tax Increment Financing (TIF) district. This incorporation helps fund a secondary entrance into Park One to accommodate heavy truck traffic, slated for a summer 2024 project.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes) [00:26:56](#).
- **00:27:03 Resolution 2023-29 (Property Transfer to Isaiah 117 House)**
 - **Sponsor / Presenter:** John (County Attorney).
 - **Deliberation Summary:** Formal resolution enacting the property transfer (discussed during the morning public hearing) of approximately 4+ acres at the southwest corner of Cornbread and Tillerson roads to Isaiah 117 House, alongside preparation of the corresponding real estate deed.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes) [00:28:05](#).
- **00:28:24 Planning Commission Report <U+2013> Solar Energy Zoning Ordinance Amendment**
 - **Sponsor / Presenter:** John (County Attorney).
 - **Deliberation Summary:** Report confirming that the Planning Commission reviewed and approved the commissioner-initiated text amendment to the comprehensive zoning ordinance regarding solar energy farms (specifically addressing acreage limits). With the Planning Commission's approval, the complete ordinance amendments are fully adopted and will become official 10 days post-publication.
- **00:35:05 Payment of Claims**
 - **Sponsor / Presenter:** Board of Commissioners.
 - **Deliberation Summary:** Review and authorization of county claims totaling \$2,950,573.22.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes) [00:35:10](#).

5. Open Public Comment / Citizen Forum

Residents addressed the board primarily regarding the newly enacted commercial solar energy ordinance and its 500-foot setback requirements:

- **00:35:34 Cheryl Swingley** <U+2013> Spoke regarding the solar ordinance, praising past industrial history but arguing that the 500-foot setback is a “fatal component” that will stifle renewable energy development, property tax growth, and state funding opportunities. Urged the board to amend the setback in January.
- **00:38:43 Sue Arrington** <U+2013> Echoed concerns about the 500-foot setback, noting it creates a chilling effect on solar companies and puts Delaware County at a competitive disadvantage with neighboring counties. Recommended reducing setbacks to 250 feet line-of-sight.
- **00:43:00 Cody Light** <U+2013> First-generation farmer speaking in favor of stricter protections, noting concerns over property value depreciation, drainage issues, and the impact of massive utility-scale solar projects on agricultural heritage and young farmers starting out.
- **00:44:24 Robert Coaster** <U+2013> Addressed state guidelines for “Solar Energy Ready Communities” issued by the Indiana Office of Energy Development, highlighting that Delaware County’s ordinance falls short of state-recommended 250-foot line-of-sight setbacks, ground cover protections, and drainage infrastructure repair mandates, thereby missing out on state funding.
- **00:47:38 Cheryl Dawson** <U+2013> Expressed strong concerns regarding drainage, highlighting that her property borders fields with shared county tile systems and flood zones, urging restrictions on solar installations on land with drainage vulnerabilities.
- **00:50:24 Katie Williams** <U+2013> Spoke in favor of utility-scale solar as an inevitable and necessary component of addressing climate change, noting that managing change is preferable to resisting it.
- **00:52:50 Linda Hansen** <U+2013> Speaking as spokesperson for the League of Women Voters Muncie-Delaware County, requested a comparative review of the county’s solar ordinance against state “Solar Energy Ready” standards to qualify for state funds and rectify non-conforming elements.
- **00:55:27 Stephan Hargrave** <U+2013> Founder of Real Black Excellence, apologized for procedural timing confusion regarding addressing the board and noted plans to return in January to discuss community funding and upcoming Black History month events scheduled for February 16.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**

- Pam Mamon (HR) reported successful completion of open enrollment, contacting nearly all 630+ employees.
- Eric Strait (Weights and Measures) recognized staff member Cheryl D. for passing state inspector certification exams.
- Chuck Zimmers (High-Tech Crimes Unit) provided brief updates on a surge in caseloads (216 cases, 431 devices) and building expansion plans, noting funding discussions will return in January.
- **Tabled Business Action:** Attorney John noted that courthouse access fob disputes between judges and public defenders had been resolved, prompting a motion to **permanently table** the pending resolution regarding courthouse security fobs. Approved by roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes) 00:57:43.
- **Adjournment:** Commissioners offered holiday greetings and Merry Christmas wishes to attendees. Motion to recess/adjourn passed by roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes) 00:58:11.

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